

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF MOTION TO COMPEL
DISCOVERY**

(CCP § 425.16, subd. (g))

Dept.: 610
Date: June 24, 2026

**PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR ORDER PER-
MITTING SPECIFIED DISCOVERY UNDER CODE OF CIVIL PRO-
CEDURE SECTION 425.16, SUBDIVISION (G)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

I. NOTICE OF MOTION

TO DEFENDANT CSAA INSURANCE EXCHANGE AND ITS COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on June 24, 2026, at 9:00 a.m., or as soon thereafter as the matter

1 may be heard in Department 302 of the above-entitled Court, located at 400 McAllister Street, San
2 Francisco, California 94102, the Honorable Joseph M. Quinn presiding, Plaintiff Dylan Franciscus
3 Rosario will and hereby does move this Court for an order under Code of Civil Procedure section
4 425.16, subdivision (g), permitting Plaintiff to take the specified discovery identified in Section
5 IV below, notwithstanding the discovery stay imposed by Defendant CSAA Insurance Exchange's
6 pending Special Motion to Strike.

7 This Motion is made pursuant to Code of Civil Procedure section 425.16, subdivision (g); Britts
8 v. Superior Court (2006) 145 Cal.App.4th 1112; and the inherent authority of this Court under
9 Code of Civil Procedure section 187, on the grounds that (a) good cause exists to permit specified
10 discovery focused on the second-prong probability-of-prevailing record; (b) each request identified
11 is narrowly tailored to facts within Defendant's exclusive possession and material to the second-
12 prong analysis under Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871 and Baral v.
13 Schnitt (2016) 1 Cal.5th 376; and (c) the requested discovery is the same Set Six discovery already
14 served on May 5, 2026 (Transaction ID 79392208), so the burden on Defendant is fully developed
15 and finite.

16 This Motion is based on this Notice of Motion and Motion; the Memorandum of Points and Author-
17 ities filed concurrently herewith; the Declaration of Dylan Franciscus Rosario filed concurrently
18 herewith; the Request for Judicial Notice filed concurrently herewith (which includes the verbatim
19 text of CCP section 425.16, subdivision (g) and the published opinion in Britts v. Superior Court,
20 supra, 145 Cal.App.4th 1112); the proposed Order lodged herewith; the pleadings, papers, and
21 records on file in this action; and any further argument and evidence the Court may receive at or
22 before the hearing.

23 24 **II. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING** 25 **LINE**

26 By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
27 this Court continued and consolidated the pending Dept. 302 matters in this action to a single
28 hearing on June 24, 2026, 9:00 a.m., Department 302, and directed: "All parties immediately to

1 provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the
2 new hearing date.” By the parties’ subsequent stipulation and on the Court’s order, all remaining
3 Dept. 302 line items were folded into the June 24, 2026 consolidated cohort, including (with-
4 out limitation) Plaintiff’s previously calendared Motion to Deem Admitted / Compel Responses /
5 Sanctions (filed April 23, 2026, originally set May 18, 2026, continued by the Court’s own motion
6 to June 11, 2026, and now consolidated to June 24, 2026). This Motion is filed for hearing on the
7 consolidated June 24, 2026 line consistent with that consolidation order.

8 The Code of Civil Procedure section 1005(b) deadline to serve and file moving and supporting
9 papers is sixteen (16) court days before the hearing. Plaintiff’s serve-by date for this Motion is
10 Tuesday, June 2, 2026. Plaintiff’s serve-by calculation accounts for electronic service per CCP
11 section 1010.6 and Cal. Rules of Court, rule 1.21, with consent on file at docket sequence 009
12 (March 6, 2026).

14 **III. RELIEF REQUESTED**

15 Plaintiff respectfully requests an order:

- 16 1. Lifting, on a specified-discovery basis under CCP section 425.16(g), the discovery stay im-
17 posed by Defendant’s April 9, 2026 Special Motion to Strike (seqs 015 to 018) for the limited
18 purpose of compelling verified responses, without objection, to the four discovery items in
19 Plaintiff’s Set Six discovery, served May 5, 2026 (Transaction ID 79392208), namely:
 - 20 (a) Plaintiff’s Requests for Production of Documents, Set Six;
 - 21 (b) Plaintiff’s Special Interrogatories, Set Six;
 - 22 (c) Plaintiff’s Requests for Admission, Set Six; and
 - 23 (d) Plaintiff’s Form Interrogatory 17.1, Set Six.
- 24 2. Setting a verified-response deadline that runs from the date the Court enters the order on this
25 Motion, with all responses to be served without objection.
- 26 3. Reserving Plaintiff’s right to seek further relief under CCP sections 2030.290, 2031.300, and
27 2033.280 in the event Defendant fails to comply with the Court’s order.
- 28 4. Granting such further relief as the Court deems just and proper.

IV. SPECIFIED DISCOVERY ITEMS (THE SAME SET SIX ITEMS ALREADY SERVED ON MAY 5, 2026)

The “specified discovery” requested is the same Set Six discovery already served on Defendant on May 5, 2026, by electronic service consistent with the consent on file at docket sequence 009 (March 6, 2026), and bearing Transaction ID 79392208. The items are set forth below; each is supported by the good-cause showing in the accompanying Memorandum of Points and Authorities and Declaration:

Set Six Item	Type	Authority	Specified Discovery Theory
1	Requests for Production of Documents (RFP), Set Six	CCP section 2031.010 et seq.	Documents within Defendant’s exclusive possession that bear on the second-prong probability-of-prevailing record (claim file, FCSPR fair-claims-practices regulation compliance documents under 10 CCR sections 2695.1 to 2695.14, and Insurance Code section 790.03(h) channel evidence).
2	Special Interrogatories, Set Six	CCP section 2030.010 et seq.	Identification interrogatories naming the persons most knowledgeable as to claim handling, reserve setting, and communications underlying the second-prong record.
3	Requests for Admission (RFA), Set Six	CCP section 2033.010 et seq.	Genuineness and effect of identified documents and the existence of identified communications already within Defendant’s possession.

Set Six Item	Type	Authority	Specified Discovery Theory
4	Form Inter- rogatory 17.1, Set Six	Judicial Council Form DISC-001; CCP section 2030.010 et seq.	Linked-response (rolling 17.1) covering each RFA above (facts, witnesses, and documents supporting any “deny” or “qualify”); narrowly tied to RFA Set Six identification only.

Plaintiff is not seeking new written discovery beyond Set Six in this Motion. Plaintiff is seeking an order under CCP section 425.16(g) that the previously-served Set Six discovery is the authorized “specified discovery” the Court permits during the pendency of Defendant’s Special Motion to Strike, and that Defendant must serve verified responses without objection by a date fixed by the Court.

V. PRAYER

For the reasons stated above and in the accompanying Memorandum of Points and Authorities, Declaration of Dylan Franciscus Rosario, and Request for Judicial Notice, Plaintiff respectfully prays that this Court:

1. GRANT this Motion under CCP section 425.16, subdivision (g);
 2. ORDER that Plaintiff’s Set Six discovery, served May 5, 2026 (Transaction ID 79392208), is permitted as specified discovery during the pendency of Defendant’s Special Motion to Strike;
 3. ORDER Defendant CSAA Insurance Exchange to serve verified, full, and complete responses, without objection, to each of the four Set Six items by a date certain to be fixed by the Court;
 4. RESERVE jurisdiction to entertain follow-on relief under CCP sections 2030.290, 2031.300, and 2033.280 in the event of noncompliance; and
 5. GRANT such further relief as the Court deems just and proper.
- A proposed Order is lodged concurrently herewith.

1 _____

2 **VI. SERVICE**

3 This Notice of Motion and Motion, the accompanying Memorandum of Points and Authorities, the
4 Declaration of Dylan Franciscus Rosario, the Request for Judicial Notice, and the proposed Order
5 are served on Defendant's counsel of record (Mark G. Tapp, Tyler J. O'Connell, Mason Schubert,
6 and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP section 1010.6 and Cal. Rules
7 of Court, rule 1.21, with a Proof of Service (POS-050) filed contemporaneously.

8 _____

9 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path